

ELIZABETH II



1985 CHAPTER xxix

An Act to re-enact with amendments certain local enactments in force in the city of Durham; to empower the Durham City Council to acquire land or rights therein or thereover for altering, adding to and extending the town hall in that city; to make further provision with regard to the freedom of that city; and for other purposes.

[22nd July 1985]

WHEREAS—

(1) The city of Durham (hereinafter referred to as “the city”) is under the management and local government of the Durham City Council (hereinafter referred to as “the Council”):

(2) The city was constituted on 1st April 1974 by virtue of the Local Government Act 1972 (hereinafter referred to as “the Act of 1972”) and comprises the following areas described by reference to administrative areas existing immediately before the passing of the Act of 1972, namely:—

the borough of Durham and Framwelgate;

the urban district of Brandon and Byshottles;

S.I. 1985/42. the rural district of Durham except so much of the parish of Shadforth as has been transferred to the district of Easington under the Durham and Easington (Areas) Order 1985; and

the lands common to the parish of Brancepeth in the rural district of Durham and the urban parish of Brandon and Byshottles:

S.I. 1983/619. (3) Certain local statutory provisions are in force in the city and by virtue of section 262 of the Act of 1972 and the Non-metropolitan and Welsh Counties (Local Statutory Provisions) Order 1983 such local statutory provisions cease to have effect at the end of 1986 subject to certain exceptions:

1933 c. xiii. (4) It is expedient that section 80 of the Durham Corporation Act 1933 (empowering the Council to close certain footpaths on the banks of the river Wear in the city on certain occasions) should be re-enacted with amendments:

(5) Part of the town hall in the city (which together with other associated premises of the Council is hereinafter referred to as "the town hall") is erected over a portion of certain premises known as and hereinafter referred to as "the covered market" a part of which premises has been leased by the Council to the Durham Markets Company for a term of 99 years from 23rd November 1925:

(6) Part of the air space over the said portion of the covered market has been used for certain alterations and additions to the town hall and to enable the town hall to be further altered, added to or extended it is expedient that the Council should be empowered to acquire further air space over the said portion of the covered market together with all necessary or incidental rights of support and other rights:

(7) It is expedient to redefine the qualifications for obtaining the freedom of the city and to make the further provision contained in this Act with reference thereto:

(8) It is expedient that the other provisions contained in this Act should be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

(10) A plan showing the land which may be taken, used or dealt with in accordance with the provisions of this Act and a book of reference relating thereto were duly deposited in the office of the Clerk of the Parliaments, and in the Private Bill Office, House of Commons, and with the proper officer of the Durham County Council, which plan and book of reference are in this Act referred to respectively as the deposited plan and the deposited book of reference:

(11) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Act of 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I
PRELIMINARY

- 1.—(1) This Act may be cited as the Durham City Council Act 1985. Citation and commencement.
- (2) This Act shall come into operation on 1st January 1986.
- 2.—(1) In this Act, unless the context otherwise requires— Interpretation.
- “the city” means the city of Durham as for the time being constituted;
- “the Council” means the Durham City Council;
- “the covered market” means the premises situate in the market place in the city known as the covered market;
- “land” includes any leasehold interest or part thereof comprised in land, any stratum of land and any licence or other right over or in respect of land or enjoyed therewith or part thereof;
- “the town hall” means the properties in the city known as the town hall (including alterations and additions thereto carried out in pursuance of a deed dated 21st February 1956 made between the Durham Markets Company of the one part and the predecessors of the Council of the other part) and the guildhall together with the rooms, halls, suites, offices and all other premises adjoining the same occupied by the Council at the commencement of this Act.
- (2) Any reference in this Act to a proper officer shall, in relation to any purpose and any local authority, be construed as a reference to an officer appointed for that purpose by that authority.

PART II
LANDS

- 3.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4, 21, subsection (5) of section 24 and 27 thereof and sub-paragraph (3) of paragraph 3 of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not Application of Part I of Compulsory Purchase Act 1965.
1965 c. 56.

PART II
—cont.

1981 c. 67.

inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

1845 c. 18.

(2) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

Power to
acquire lands.

4.—(1) Subject to the provisions of this Act the Council may enter upon, take and use such of the lands in the city delineated on the deposited plan and described in the deposited book of reference as they may require for the purpose of altering, adding to or extending the town hall:

Provided that the Council may only acquire under the provisions of this section land comprised in the air space above the floor level of the covered market extending upwards from a level equal to that of the main hall comprised in the town hall but together with all necessary rights of support, of access and for the provision of services from the land underneath and any land necessary therefor.

(2) The powers of the Council for the compulsory acquisition of land under this section shall not be exercised after the determination of the lease dated 4th July 1927 and made between the mayor, aldermen and citizens of the city of Durham and Framwelgate of the one part and the Durham Markets Company of the other part.

Correction of
errors in
deposited plan
and book of
reference.

5.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Council, after giving not less than 10 days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the city for the correction thereof.

(2) If on such application it appears to the justices that the misstatement or wrong description arose from mistake or inadvertence, they shall certify accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, with the proper officer of the county council of Durham and with the proper officer of the Council, and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Council to take the land in accordance with the certificate.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

PART II
—cont.

6. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land under this Act, the Lands Tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, works executed or improvement or alteration made, whether on the land acquired or on any other land with which the claimant is, or was at the time of the erection, execution or making of the building, works, improvement or alteration, directly or indirectly concerned, if the tribunal is satisfied that the creation of the interest, the erection of the building, the execution of the works, or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

Disregard of recent improvements and interests.

PART III MISCELLANEOUS

7.—(1) In this section “the footpaths” means the following parts of footpaths along the banks of the river Wear in the city:—

Power to close footpaths on river banks on special occasions.

(a) so much of footpath 48 as lies between the junctions of that footpath with footpath 47 and with footpath 41;

(b) so much of footpath 78 as lies between the point where that footpath is crossed by Elvet Bridge and the junction of that footpath with footpaths 80 and 85; and

(c) so much of footpath 80 as lies between the junctions of that footpath with footpath 78 and with the northern end of footpath 82.

(2) Any reference in this section to a footpath or bridleway identified by a number shall be construed as a reference to the footpath or bridleway of that number as specified in the latest revised map and statement prepared in definitive form relating to the city under section 33 of the National Parks and Access to the Countryside Act 1949 as having effect on the coming into operation of this Act.

1949 c. 97.

(3) Subject to the provisions of this section the Council may for the purposes of any regatta, swimming contest, aquatic sports or other special event, close to the public for such time or times as they think fit the whole or any part or parts of the

PART III
—*cont.*

footpaths and demand and take or permit to be demanded and taken such reasonable sums as they think fit for the exclusive use of the footpaths or any part thereof so closed or for the admission of persons to the footpaths or any part thereof and may exclude therefrom any person who does not pay the reasonable sum demanded:

Provided that the Council shall not under the powers of this section close the footpaths or any part thereof for more than 12 days in any one year or for more than four consecutive days on any one occasion.

(4) The Council, not less than 7 days before closing the whole of the footpaths or any part thereof, shall cause notice of their intention to exercise their powers under subsection (3) above to be published in at least one local newspaper circulating in the city and shall during the time the footpaths or any part thereof are closed cause notice of the same to be displayed in a prominent position at each end of each of the footpaths so closed and also in the case of footpath 78—

- (a) at the south side of Shincliffe Bridge at its junction with footpath No. 10;
- (b) at the north end of bridleway 113 at its junction with Front Street;
- (c) at the north end of footpath 83 at its junction with footpath 107;
- (d) near Whitwell Beck Culvert on Shincliffe Lane at its junction with footpath 90;
- (e) at the south end of bridleway 6 at its junction with Mill Lane.

As to freemen. 8.—(1) In this section—

“employer” means the person to whom an apprentice is considered to be bound for the purpose of his apprenticeship notwithstanding that his contract of employment may be with a body corporate or partnership;

“freeman” means a freeman of the city;

“guild” means a guild of the city;

“the guildhall” means the guildhall of the Council.

(2) (a) Save as provided by subsection (4) below, notwithstanding any custom or enactment, a male who has attained the age of 18 years and who shall have one or more of the relevant qualifications mentioned in paragraph (b) of this subsection and who complies with the procedural requirements of the guild meetings at which freemen are called and admitted, shall be qualified to be admitted to the freedom of the city.

(b) The relevant qualifications referred to in paragraph (a) of this subsection are—

PART III
—cont.

- (i) patrimony, that is to say, he is either the son of a freeman or the husband of the daughter of a freeman;
- (ii) guild servitude, that is to say, service of not less than three years' whole-time apprenticeship to an employer who is a freeman;
- (iii) Durham servitude, that is to say, service of not less than three years' whole-time apprenticeship in one or more trade or trades in the city whether or not such trade is the trade of an extant guild.

(c) For the purpose of qualifying for admission to the freedom of the city—

- (i) the death of any person shall not affect the qualification of any applicant for admission to freedom of the city under sub-paragraph (i) of paragraph (b) of this subsection;
- (ii) the fact that the employer of an applicant for admission to the freedom of the city has not been a freeman during the whole of the three qualifying years of apprenticeship or that the apprentice has had more than one employer during such period who was at the relevant time a freeman shall not disqualify an applicant for admission to freedom of the city under sub-paragraph (ii) of paragraph (b) of this subsection;
- (iii) service with more than one employer shall not disqualify an applicant for admission to freedom of the city under sub-paragraph (iii) of paragraph (b) of this subsection.

(3) A person qualified for admission to the freedom of the city under sub-paragraph (iii) of paragraph (b) of subsection (2) above or a person admitted as a freeman under subsection (4) below shall be admitted to membership of an existing guild chosen at the discretion of the wardens of the guilds.

(4) Notwithstanding subsection (2) above or any custom or enactment, at the discretion of the guilds and freemen there may be admitted as freemen in accordance with ancient local custom or practice males who have attained the age of 18 years not qualified under subsection (2) above.

(5) The clerk of any guild meeting shall be the proper officer of the Council or a person appointed by him to be his representative for the purpose.

(6) The freemen shall so far as practicable maintain a list of names and addresses of the freemen and shall supply a copy annually to the proper officer of the Council, receipt of which copy shall be deemed compliance by the proper officer with the requirement of subsection (2) of section 248 of the Local Government Act 1972.

PART III
—cont.

(7) Any person may, on application to the person appointed for that purpose by the freemen, inspect at all reasonable hours the list required by subsection (6) above to be maintained and shall be entitled to obtain a copy for any reasonable fee demanded which at the commencement of this Act shall not exceed 20p per page.

(8) The traditional right of the freemen and guilds to hold quarterly guild meetings in the guildhall without payment shall continue and such meetings shall be open to the public:

Provided that the person presiding at the meeting may at his discretion exclude any or all members of the public for good cause.

(9) Upon the commencement of this Act the right of the clerk of any guild meeting to receive any fee for such clerkship shall cease and the Council shall not thereafter be entitled to claim the traditional "candle money" paid for the illumination of the guildhall during guild meetings.

(10) Nothing in this section shall, except to the extent required or implied by this section, alter or abolish any subsisting rule, practice, requirement or privilege of the freemen or of the guilds, or affect the right to any payment or dividend to which any freeman or guild was entitled immediately before the commencement of this Act.

(11) For the avoidance of doubt it is hereby declared that immediately before the commencement of this Act the guildhall was held by the Council free from any right of the freemen or of the guilds other than the rights referred to in subsection (8) above and in paragraph (a) of subsection (12) below.

(12) Nothing in this section shall affect—

- (a) the traditional right of the freemen and guilds to hold, in addition to the quarterly guild meetings referred to in subsection (8) above, a maximum of 12 additional meetings or functions of any kind in the guildhall in any one year without payment;
- (b) the traditional right of a freeman to erect a stall in the Durham market place on market days without payment;
- (c) the ownership of any silver plate and associated regalia or of any other assets or interests of or the use of any heraldic device or other badge held or enjoyed by the freemen or the guilds immediately before the commencement of this Act.

Repeals.

9. The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in that Schedule.

SCHEDULE

Section 9.

ENACTMENTS REPEALED

Chapter and S.I. number	Title or short title	Extent of repeal
41 Geo. 3 c. 12. (1801).	An Act for Dividing and Inclosing certain Moors, Commons, or Waste Lands, and Two Parcels of Ground called The Intack or Cow Pasture, and Shaw Wood, within the several Townships of Framwellgate and Witton Gilbert, and in the several Manors of Chester and Lanchester, in the County Palatine of Durham; and for extinguishing all Rights of Common on certain inclosed Inter-common Lands within the same Townships.	The whole Act.
49 Geo. 3 c. cxxxix. (1809).	An Act for erecting a new Gaol and House of Correction, and new Courts of Justice, in and for the County Palatine of Durham, and purchasing proper Scites for the same; and for disposing of the Old Gaol and House of Correction and Courts of Justice there; and making an equal County Rate for those Purposes.	The whole Act.
51 Geo. 3 c. cci. (1811).	An Act to amend an Act of the Forty-ninth Year of His present Majesty, for erecting a new Gaol and House of Correction and new Court Houses, for the County Palatine of Durham, and making an equal County Rate for those Purposes.	The whole Act.
12 & 13 Vict. c. 94.	Public Health Supplemental Act 1849.	The Order relating to Durham.
24 & 25 Vict. c. 39.	Local Government Supplemental Act 1861.	The Order relating to Durham.

SCH.
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Chapter and S.I. number	Title or short title	Extent of repeal
40 & 41 Vict. c. lxxvii.	Local Government Board's Provisional Orders Con- firmation (Altrincham, &c.) Act 1877.	The Order relating to Brandon and Byshottles.
62 & 63 Vict. c. cix.	Local Government Board's Provisional Orders Con- firmation (No. 3) Act 1899.	Durham Rural Order 1899.
2 Edw. 7 c. lxxix.	Local Government Board's Provisional Orders Con- firmation (No. 2) Act 1902.	Durham Rural Order 1902.
5 Edw. 7 c. cvii.	Local Government Board's Provisional Orders Con- firmation (No. 11) Act 1905.	Durham (Extension) Order 1905.
14 & 15 Geo. 5 c. lxxiv.	Ministry of Health Pro- visional Orders Con- firmation (No. 8) Act 1924.	Durham Order 1924.
23 & 24 Geo. 5 c. xiii.	Durham Corporation Act 1933.	The whole Act.
S.I. 1962/ 1246.	Durham (Amendment to Local Enactment) Order 1962.	The whole Order.
1968 c. xxxviii.	Durham County Council Act 1968.	Section 84 (As to pre- cedence of chairman of the Council in the city of Durham).

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CHAPTER xxix

ARRANGEMENT OF SECTIONS

PART I PRELIMINARY

Section

1. Citation and commencement.
2. Interpretation.

PART II LANDS

3. Application of Part I of Compulsory Purchase Act 1965.
4. Power to acquire lands.
5. Correction of errors in deposited plan and book of reference.
6. Disregard of recent improvements and interests.

PART III
MISCELLANEOUS

Section

7. Power to close footpaths on river banks on special occasions.
8. As to freemen.
9. Repeals.

SCHEDULE—Enactments repealed.